

26STCV07071 26STCV07071

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-08

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Case Number: 26STCV07071 Hearing Date: July 8, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

FEREIDOON

SHAHROKH, et al.

Plaintiffs,

vs.

KATAYOON

SHAHROKH, et al.

Defendants.

Case No.:

26STCV07071

Hearing

Date:

July 8, 2026

[TENTATIVE]

ORDER CONTINUING MOTION TO APPOINT
APPRAISER

I. BACKGROUND

Plaintiffs Fereidoon Shahrokh ("Fereidoon") and Soosan Shahrokh ("Soosan") are joint tenants of at 950 Centinela Avenue, Santa Monica, CA 90403 (the "subject property"), sharing the tenancy with Defendant Katayoon Shahrokh ("Katayoon"). Plaintiffs sue Defendants to partition the property and end the co-ownership relationship.

On May 28, 2026, Plaintiffs filed the instant motion to appoint an appraiser to determine fair market value under the Partition of Real Property Act ("PRPA"). Katayoon opposes. Plaintiffs reply.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 872.210, subdivision (a),^[1] a co-owner may bring an action for partition. Partition is the proper procedure for segregating and terminating common interests in the same parcel of property. (Summers v. Superior Court (2018) 24 Cal.App.5th 138, 142.)

"If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition." (§ 872.720.) The manner of partition may be in kind (i.e., physical division of the property), by sale, or by appraisal. (Cummings v. Dessel (2017) 13 Cal.App.5th 589, 597.)

III. DISCUSSION

A. PRPA

Application

Plaintiffs request the Court appoint an appraiser to determine the fair market value under PRPA, as Plaintiffs and Katayoon are

tenants in common with no recorded agreement governing partition. Pursuant to section 874.311, subdivision (b), PRPA only applies to real property held in tenancy in common with no agreement in a record binding all co-tenants which governs the partition of the property.

The complaint and Cross-Complaint establish Plaintiffs and Katayoon are tenants in common. The attached deed to the complaint identifies the subject property was deeded to “Katayoon Shahrokh, a single woman and Fereidoon Shahrokh and Soosan Shahrokh, husband and wife as joint tenants.” (Complaint, Ex. 1.) Pursuant to Civil Code section 686, every interest created in favor of several persons in their own right is an interest in common, unless otherwise declared or obtained via partnership or marriage. As only the property interest between Plaintiffs was identified as a joint tenancy, Katayoon and Plaintiffs are tenants in common with each other. The Cross-Complaint similarly asserts parties are tenants in common. (Cross-Complaint, p. 2 ¶¶ 3-4.)

Similarly, the Cross-Complaint asserts there is no binding agreement governing the partition of the property. (Id. at pg. 3 ¶ 12.) This action also satisfies the 874.311, subdivision (c), requirement, as it was filed on or after January 1, 2023. Therefore, PRPA applies to this action. The Court is obligated to determine the fair market value of the property by ordering an appraisal, pursuant to section 874.316, subdivision (a).

B. Appointment of Appraiser

The Court is obligated to appoint a disinterested real estate appraiser licensed in the State of California to determine the fair market value. Plaintiffs provide three potential appraisers, all of which Plaintiffs' counsel has not worked with previously. (Mot., Dajee Decl. ¶¶ 4-5.) However, beyond proof of active license, no information was provided as education, experience, or any other relevant information for the Court to determine which appraiser is best suited for the task.

The Court continues the hearing on the motion. Parties are ordered to meet and confer regarding choice of appraiser. (For example, Plaintiff can identify three or five unrelated candidates, and Defendant selects one.) If parties are unable to come to an agreement prior to the hearing date, they are instructed to each submit two preferred appraisers, complete with relevant

information, to the Court for review.

Parties are also ordered to meet and confer regarding the scope of the appraisal, as Katayoon has put this at issue. If parties are unable to agree upon the scope prior to the next hearing date, parties are ordered to submit a joint statement attesting to attempts to meet and confer and the specific issues in dispute.

If parties are able to agree on these issues prior to the hearing date, the Court orders Plaintiffs to take this motion off calendar.

IV. CONCLUSION

Plaintiffs Fereidoon Shahrokh and Soosan Shahrokh's motion to appoint an appraiser to determine fair market value is CONTINUED to an available date on the court's calendar in approximately 90-120 days.

Parties are ordered to meet and confer prior to the next hearing date. Parties are ordered to submit a joint meet and confer statement at least 5 days prior to the next hearing date.

Plaintiffs are ordered to give notice.

DATED:

July 8, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time,

counsel's contact information, and the identity of the party submitting.

- Unless all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.